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Critical thinking: Lit/writing

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Experiencing REM: Laws vs. Ethics

In August 2023, the United States Supreme Court upheld a ruling called *Grants Pass v. Johnson* that allows cities and states to enforce laws prohibiting people from sleeping in outdoor public spaces, mainly against individuals experiencing homelessness. These people could be punished by ticket or arrest despite having no other options for shelter. This decision is considered extremely controversial as the court was split in the belief that these bans do not violate the Eighth Amendment protection against cruel and unusual punishment. Homelessness rates continue to rise across the U.S., while supporters claim the bans are necessary to maintain public safety. The laws banning public sleeping and camping raise ethical dilemmas and exploit major systemic corruption by criminalizing victims of homelessness and making it harder for people to escape poverty.

Imagine having to deal with the choice of staying awake or being arrested. This is a decision that over 650,000 Americans must make. According to the 2023 Annual Homelessness Assessment Report, approximately 0.2% of Americans are considered homeless, meaning about one in every 500 people experience homelessness on a single night, and this number is rising. Cities implementing bans on sleeping in public will significantly worsen homeless individuals' situations. The government is putting forth these laws without providing any other options since there is a lack of public shelters across the United States. Some states have enough beds to shelter 90% of their homeless population, while others have capacity for less than half. Homeless

individuals will be forced to sleep in even more precarious locations, potentially exposing them to greater danger. People claiming that these laws are necessary to maintain public safety need to open their eyes. What exactly are their safety concerns when they're sound asleep in a home? The homeless will be forced to hide in dangerous locations such as abandoned buildings, exposed areas, or vehicles, increasing their risk of assault, theft, and exposure to the elements, all due to fear of the law. Supreme Court Justice Sonia Sotomayor was one of three who dissented from the ruling. She claimed, "The decision ignores the basic human need for sleep. It further criminalizes homelessness, poverty, and mental illness with enforcement often exacerbating individual's circumstances." Sotomayor, along with other critics, believes the ruling is unethical and affects the 9th Circuit. Advocates argue that the root cause will continuously be ignored: a lack of affordable housing and systemic support. Laws such as these should not be allowed to exist unless the government has an active plan to provide options for shelter and care. Punishing victims of homelessness or social abandonment by arresting them is cruel, how does anyone believe this does not violate the 8th Amendment?

The decision to pass "Grants Pass vs. Johnson" showed a systematic issue that will grow worse due to the further destabilization of homeless victims' lives while failing to help them find homes. Advocates argue that housing and safe living conditions are human rights and there are more effective solutions, such as universal basic income programs and homeless courts. These have shown positive results in some cities, with UVI programs providing regular payments to communities regardless of their conditions, overall reducing poverty. Homeless courts are designed to help people address outstanding criminal cases such as infractions, misdemeanors, and low-level felony cases that can keep them from securing employment and housing. Ultimately, critics believe that addressing the root causes of homelessness is our only hope.

These laws are just a way to keep ignoring the main problem; it is unethical, and we shouldn't be putting effort into these laws, we should be creating a solution. In Denver, Colorado, they are doing exactly that. State and local officials stand against the ongoing erosion of fundamental liberties. Denver Mayor Mike Johnston said, "We do not need the U.S. Supreme Courts guidance to know the right way to address homelessness is through compassion and humanity. We will keep fighting to protect everyone's basic rights no matter their race, sex, gender, identity, or housing status." His administration's goal is to bring a total of 2000 people inside by the end of 2024. "In Denver, we believe people should sleep in their own beds, not street corners," Spokesperson Jon Ewing said.

The U.S. Supreme Court overturned lower court rulings that deemed these bans cruel and unusual. There has been heavy pressure from communities that have faced increased crime and drug use in public areas with large homeless populations. The supporters of laws that ban sleeping in public argue that homeless encampments can pose a threat to public health and safety. They also claim these laws will "encourage the homeless to use the available resources such as shelters." Claims like these only show how people have a lack of understanding of the country's level of support and mistakenly believe homelessness is a choice. These are harmful stereotypes associated with laziness, poor decision-making, or lack of personal responsibility. There are societal biases that portray homeless individuals as lacking motivation and are responsible for their situation. Factors like mental illness, medical emergencies, domestic abuse/violence, and job loss can all contribute to someone becoming homeless. The oversimplification of the issue of homelessness truly shows a need for addressing systemic issues. Homelessness is rarely a choice, and many victims are actively working to rise above their situation.

I had the opportunity this semester to volunteer at a homeless shelter for this class, and it opened a new perspective for me. I was surprised at how many times I thought to myself, “These people do not look homeless.” I witnessed multiple people talk about their day at work and what they did for a living. They described plans of how they hoped to keep working so they could provide more for themselves. I also saw people who were struggling with a mental illness; they didn’t belong there either. They need and deserve to be in a setting that can aid them in healing, but they do not have the resources or support to get them to such an institution, so at least they’re in a shelter and not on the streets for that night. By being present in this setting, I was able to capture these key moments of my experience and carry them with me, forever altering my view of life. The part of homelessness that people need to remember is that it can happen to anyone, there is always a possibility that you could lose everything.

If we have to question whether an act of law is “ethical,” then maybe it shouldn’t be upheld at all. It is a human right to have safe housing conditions, and with minimal shelters and resources in the majority of communities, the individuals struggling should not be criminalized. The Supreme Court naming homelessness as such “a complex issue best handled by local governments, not federal judges” is just their way of avoiding the problem and pushing it down the line for others to take care of. The laws banning public sleeping and camping are unethical and exploit major systemic corruption by criminalizing victims of homelessness and social abandonment, making it harder for people to escape poverty and break the cycle. The exploration of the balance between legal authority and basic human rights needs to be thought of in a much different way than it currently is. Why is it that humans need to experience such hardship and struggle to finally have the courage to make changes?

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